

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3114

By: Wilk, **Hardin**, and **Turner** of
the House

and

Hamilton of the Senate

11 COMMITTEE SUBSTITUTE

12 An Act relating to prisons and reformatories;
13 amending 57 O.S. 2021, Section 510.9, which relates
14 to the electronic monitoring program for inmates;
15 adding criminal offense to list that bars eligibility
16 to the program; providing for removal upon loss of
17 eligibility; and providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 57 O.S. 2021, Section 510.9, is
21 amended to read as follows:

22 Section 510.9. A. There is hereby created the Electronic
23 Monitoring Program for inmates in the custody of the Department of
24 Corrections who are sentenced for a nonviolent offense not included

1 as a violent offense defined in Section 571 of this title. The
2 Department is authorized to use an electronic monitoring global
3 positioning device to satisfy its custody duties and
4 responsibilities.

5 B. After an inmate has been processed and received through a
6 Department Assessment and Reception Center, has a home offer, and
7 has met the criteria established in subsection C of Section 521 of
8 this title, the Director of the Department of Corrections may assign
9 the inmate, if eligible, to the Electronic Monitoring Program. The
10 following inmates, youthful offenders and juveniles shall not be
11 eligible for assignment to the program:

12 1. Any inmate serving a sentence of more than ten (10) years
13 who has one thousand ninety-five (1,095) days or more left on the
14 sentence;

15 2. Inmates convicted of a violent offense within the previous
16 ten (10) years or convicted of a violation enumerated in Section
17 13.1 of Title 21 of the Oklahoma Statutes;

18 3. Inmates convicted pursuant to Section 11-902 of Title 47 of
19 the Oklahoma Statutes who are not receptive to substance abuse
20 treatment and follow-up treatment;

21 4. Inmates deemed by the Department to be a security risk or
22 threat to the public;

1 5. Inmates requiring educational, medical or other services or
2 programs not available in a community setting as determined by the
3 Department;

4 6. Inmates convicted of any crime related to domestic abuse as
5 provided for in Section 644 of Title 21 of the Oklahoma Statutes or
6 who have an active protection order that was issued under the
7 Protection from Domestic Abuse Act;

8 7. Inmates who have outstanding felony warrants or detainers
9 from another jurisdiction;

10 8. Inmates convicted of a sex offense who, upon release from
11 incarceration, would be required by law to register pursuant to the
12 Sex Offender Registration Act;

13 9. Inmates convicted for any crime against a child or abuse
14 pursuant to Section 843.5 of Title 21 of the Oklahoma Statutes;

15 10. Inmates convicted of exploitation of a vulnerable adult
16 pursuant to Section 843.3 of Title 21 of the Oklahoma Statutes;

17 11. Inmates convicted of racketeering activity as defined in
18 Section 1402 of Title 22 of the Oklahoma Statutes;

19 12. Inmates convicted pursuant to subsection F of Section 2-401
20 of Title 63 of the Oklahoma Statutes;

21 13. Inmates convicted pursuant to Section 650 of Title 21 of
22 the Oklahoma Statutes;

23 14. Inmates convicted pursuant to subsection B of Section 11-
24 904 of Title 47 of the Oklahoma Statutes;

1 15. Inmates who have escaped from a medium or maximum custody
2 penal or correctional institution within the previous ten (10)
3 years; or

4 ~~15.~~ 16. Inmates who currently have active misconduct actions on
5 file with the Department of Corrections.

6 C. Every eligible inmate assigned to the Electronic Monitoring
7 Program shall remain in such program until one of the following
8 conditions has been met:

9 1. The inmate discharges the term of the sentence;

10 2. The inmate is removed from the Electronic Monitoring Program
11 for violation of any rule or condition of the program and reassigned
12 to imprisonment in a correctional facility; or

13 3. The inmate is paroled by the Governor pursuant to Section
14 332.7 of this title.

15 D. After an inmate has been assigned to the Electronic
16 Monitoring Program, denial of parole pursuant to Section 332.7 of
17 this title, shall not be cause for removal from the program,
18 provided the inmate has not violated the rules or conditions of the
19 program. The inmate may remain assigned to the program, if
20 otherwise eligible, until the completion of the sentence. Loss of
21 eligibility for the program shall result in removal of the inmate
22 from the program.

23 E. The Electronic Monitoring Program shall require active
24 supervision of the inmate in a community setting by a correctional

1 officer or other employee of the Department of Corrections with
2 monitoring by a global positioning device approved by the Department
3 under such rules and conditions as may be established by the
4 Department. If an inmate violates any rule or condition of the
5 program, the Department may take necessary disciplinary action
6 consistent with the rules established pursuant to this section
7 including reassignment to a higher level of security or removing the
8 inmate from the program with reassignment to imprisonment in a
9 correctional facility. Any inmate who escapes from the Electronic
10 Monitoring Program shall be subject to the provisions of Section 443
11 of Title 21 of the Oklahoma Statutes.

12 F. Upon an inmate assigned to the Electronic Monitoring Program
13 becoming eligible for parole consideration, pursuant to Section
14 332.7 of this title, the Department of Corrections shall deliver the
15 inmate, in person, to a correctional facility for an interview,
16 together with any Department records necessary for the Pardon and
17 Parole Board's investigation. Inmates assigned to the Electronic
18 Monitoring Program shall not be allowed to waive consideration or
19 recommendation for parole.

20 G. Prior to placement of any eligible inmate assigned to the
21 Electronic Monitoring Program being placed in a community setting,
22 the Department of Corrections shall deliver a written notification
23 to the sheriff and district attorney of the county, and the chief
24 law enforcement officer of any incorporated city or town in which

1 the inmate is to be monitored and supervised under the program. The
2 Department of Corrections shall provide notice of the projected date
3 of release of an inmate to the designated Oklahoma victim
4 notification service provider within sixty (60) days but not less
5 than seven (7) days prior to the projected date of release of the
6 inmate.

7 H. An inmate assigned to the Electronic Monitoring Program may
8 be required to pay the Department of Corrections for all or part of
9 any monitoring equipment or fee, substance abuse treatment program
10 or follow-up treatment expense, supervision cost or other costs
11 while assigned to the program. The Department shall determine
12 whether the inmate has the ability to pay all or part of such fee or
13 costs.

14 I. The Department of Corrections shall develop policies and
15 procedures necessary to implement the Electronic Monitoring Program
16 including but not limited to methods of monitoring and supervision,
17 disciplinary action, reassignment to higher and lower security
18 levels, removal from the program and costs of monitoring and
19 supervision to be paid by the inmate, if any.

20 J. An inmate assigned to the Electronic Monitoring Program
21 shall, within thirty (30) days of being placed in a community
22 setting, report to the court clerk and the district attorney of the
23 county from which the judgment and sentence resulting in
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1 incarceration arose to address payment of any fines, costs,
2 restitution and assessments owed by the inmate, if any.

3 SECTION 2. This act shall become effective November 1, 2026.

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5 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/04/2026 - DO PASS,
6 As Amended and Coauthored.

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